

Ritesh Kumar Singh v. Madhyanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 16 May 2022 · Writ-C No. 2654 of 2022 ·
Writ disposed with liberty to invoke clause 6.5.

HEADNOTE

A writ challenging a recovery certificate for unpaid commercial electricity dues was not entertained. Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 was treated as an adequate remedy for a consumer who disputes bills and arrears. The petition was disposed of with liberty to approach the authority concerned within one week, any such application to be decided within four weeks, and without any observation on the merits.

FACTUAL SUMMARY

Ritesh Kumar Singh held a commercial electricity connection supplied by Madhyanchal Vidyut Vitran Nigam Ltd. On 12 April 2022 a recovery certificate was issued against him for unpaid electricity dues. He filed Writ-C No. 2654 of 2022 in the Allahabad High Court, Lucknow Bench, challenging that certificate. The licensee was represented by counsel. The Division Bench heard the petition on 16 May 2022.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Recovery certificate for disputed electricity dues

HOLDING

Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 is an adequate remedy where a consumer disputes bills and arrears by a complaint about discrepancies in the bills. A writ challenging a recovery certificate for unpaid commercial electricity dues is not entertained. The consumer may approach the authority concerned under clause 6.5 within one week, and any such application shall be considered and decided within four weeks. ¶ 3-4

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the recovery certificate was not entertained because clause 6.5 was held to be an adequate remedy for disputed bills and arrears. ¶ 3-4

clause-6.5-statutory-remedy-disputed-bill The unpaid commercial dues covered by the recovery certificate were left to a complaint about bill discrepancies under clause 6.5. ¶ 2-4

6.5-representation-as-appropriate-remedy Liberty was reserved to move the authority concerned under clause 6.5 within one week, with a direction to decide any such application within four weeks. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CHALLENGE TO THE RECOVERY CERTIFICATE AND THE ELECTRICITY DUES

The Court made no observation on the merits and left the complaint to the clause 6.5 authority. ¶ 5